Banking (Victoria Falls International Financial Services Centre) (Arbitration) Regulations, 2026

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Title.
2. Interpretation.
3. Application.
4. General Principles.

PART II

ARBITRATION CENTRE

5. Establishment and functions of Arbitration Centre.
6. Registrar of Arbitration Centre.
7. Database of arbitrators.
8. Exemption from liability of Arbitral Tribunal, Registrar and employees.
9. Rules, practice directions and practice guides.

PART III

ARBITRATION

10. Initiation of arbitral procedures.
11. Receipt of written communications.
12. Waiver of right to object.
13. Extent of Tribunal intervention.

PART IV

ARBITRATION AGREEMENT

14. Form of arbitration agreement.
15. Arbitration agreement and substantive claim before a Tribunal.
16. Arbitration agreement and interim measures.
17. Confidentiality.

PART V

COMPOSITION OF ARBITRAL TRIBUNAL

18. Number of arbitrators.
19. Appointment of arbitrators.
20. Grounds for challenging appointment of arbitrator.
21. Procedure for challenge of arbitrator.
22. Failure or impossibility to act.
23. Appointment of substitute arbitrator.
24. Liability of Arbitration Tribunal.

PART VI

JURISDICTION OF ARBITRATION TRIBUNAL

25. Competence of Arbitration Tribunal to rule on its jurisdiction.
26. Power of Arbitration Tribunal to order interim measures.

PART VII

CONDUCT OF ARBITRAL PROCEEDINGS

27. Equal treatment of parties.
28. Determination of rules of procedure.
29. Seat of arbitration.
30. Commencement of arbitral proceedings.
31. Language.
32. Statements of claim and defence.
33. Hearings and written proceedings.

Section

34. Default of party.
35. Expert appointed by arbitral tribunal.
36. Court assistance in taking evidence.

PART VIII

MAKING OF AWARD AND TERMINATION OF PROCEEDINGS

37. Rules applicable to substance of dispute.
38. Decision making by arbitral tribunal.
39. Settlement.
40. Form and contents of award.
41. Termination of proceedings.
42. Correction and interpretation of award; additional award.

PART IX

RECOURSE AGAINST AWARD

43. Application for setting aside as exclusive recourse against arbitral award-Appeals Arbitration.

PART X

RECOGNITION AND ENFORCEMENT OF AWARDS

44. Recognition and enforcement of awards.

45. Grounds for refusing recognition or enforcement.

IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion, in terms of section 81 of the Banking Act [*Chapter 24:20*], has made the following regulations:—

PART I

PRELIMINARY

Title

1. These regulations may be cited as the Banking (Victoria Falls International Financial Services Centre) (Arbitration) Regulations, 2026.

Interpretation

2. In these regulations—

"arbitration" means the resolution of disputes conducted pursuant to an arbitration agreement, as defined in section 15;

"Arbitral Tribunal" means a sole arbitrator or a panel of arbitrators;

"Centre" means the Victoria Falls International Financial Centre;

"international financial services centre" means the Victoria Falls International Financial Services Centre;

"Registrar" means the Registrar of the Arbitration Centre established in section 5.

Application

3. These regulations apply in the jurisdiction of the international financial services centre and are complementary to the Banking (Victoria Falls International Financial Services Centre) General Regulations published in Statutory Instrument 29 of 2025.

General principles

4. (1) The provisions of these regulations are founded on the following principles and shall be construed accordingly—

(a) the object of arbitration is to obtain the fair resolution of disputes by an impartial tribunal without unnecessary delay or expense;

(b) the parties should be free to agree how their disputes are resolved, subject only to such safeguards as are necessary in the public interest;

(c) regard is to be had to the international origin of arbitration and for the need to promote uniformity in its application and the observance of good faith; and

(d) questions concerning matters governed by these regulations which are not expressly settled in them must be resolved in accordance with the general principles on which these regulations are based.

PART II

Arbitration Centre

Establishment and functions of Arbitration Centre

5. (1) There is hereby established an Arbitration Centre within the international financial services centre to be called the Victoria Falls International Arbitration Centre.

(2) The Arbitration Centre established in terms of subsection (1) shall provide the following services—

(a) exclusive administration of arbitration governed by these regulations, subject to the agreement of the parties to a case, and such rules to include procedures for expedited arbitration, the appointment of emergency arbitrators, and the resolution of investment treaty disputes;

(b) other forms of alternative dispute resolution are subject to the agreement of the parties to a case;

(c) assist with the appointment of arbitrators and mediators to arbitrations and mediations conducted at the Arbitration Centre; and

(d) state of the art administrative facilities, including conference, meeting, and hearing rooms, at its premises, to be known as "The Arbitration Centre Chambers".

Registrar of Arbitration Centre

6. (1) The Arbitration Centre shall be headed by a Registrar.

(2) The Registrar shall be responsible for—

(a) constituting the Arbitration Tribunal and the Appeals Tribunal;

(b) case management of administered cases before the Arbitration Centre;

(c) maintaining a register of potential arbitrators.

(3) The Registrar shall have power to do all things necessary or convenient for the purpose of these regulations.

(4) Neither the Registrar, the Centre, nor an officer, employee, delegate or agent of the Registrar or Centre, can be held liable for anything done or omitted to be done in the exercise or purported exercise of the functions of the Registrar or the Board of Directors of

the Centre under these regulations, the rules or any other legislation administered by the Registrar.

(5) Subsection (4) does not apply in relation to an act or omission if the act or omission is shown to have been in bad faith.

Database of arbitrators

7. (1) The Registrar shall keep a database of persons eligible to be appointed as arbitrators in the event of arbitration proceedings.

(2) The Centre shall issue guidelines on the criteria to identify potential arbitrators to be in the database.

Exemption from liability of Arbitral Tribunal, Registrar and employees

8. The Arbitral Tribunal, arbitrators, Registrar, deputy Registrar, officers, employees or agents, cannot be held liable for anything done or omitted to be done in the performance or purported performance of the functions, or in the exercise or purported exercise of any powers, under these regulations except if the act or omission is shown to have been done in bad faith.

Rules, practice directions and practice guides

9. (1) The arbitration and mediation rules of the International Arbitration Centre are to be called "The International Arbitration Centre Arbitration and Mediation Rules". They may be made to govern and provide for practice and procedure to be followed in arbitrations and mediations administered at the International Arbitration Centre, subject to the agreement of the parties to a case.

(2) The International Arbitration Centre Arbitration and Mediation Rules may provide for any matter of practice or procedure to be made or governed by practice directions.

(3) The International Arbitration Centre Arbitration and Mediation Rules, practice directions and practice guides may be made, amended, repealed, or revoked by the Minister.

(4) The Registrar shall publish the International Arbitration Centre Arbitration and Mediation Rules under these regulations, which shall come into force on such day as the Minister directs.

PART III

Arbitration

Initiation of arbitral procedures

10. (1) Unless otherwise agreed by the parties, the arbitral proceedings in respect of a particular dispute commence on the date on which a request for that dispute to be referred to arbitration is received by the respondent.

(2) The party or parties initiating recourse to arbitration (hereinafter the "claimant") shall communicate to the other party or parties (hereinafter the "respondent") and the Centre a notice of arbitration.

(3) A notice of arbitration referred to in subsection (2) shall include the following—

(a) a demand that the dispute be referred to arbitration;

(b) the names and contact details of the parties;

(c) identification of the arbitration agreement that is invoked;

(d) identification of any contract or other legal instrument out of or in relation to which the dispute arises or, in the absence of such contract or instrument, a brief description of the material facts leading to the dispute;

(e) a brief description of the claim and an indication of the amount involved, if any;

(f) the relief or remedy sought;

(g) a proposal as to the number of arbitrators if the parties have not previously agreed thereon.

(4) Within thirty days of the receipt of the notice of arbitration, the respondent shall communicate to the claimant and the Registrar a response to the notice of arbitration, which shall include—

(a) the name and contact details of each respondent; and

(b) a response to the information set forth in the notice of arbitration.

(5) The response to the notice of arbitration may also include—

(a) any plea that an Arbitration Tribunal constituted under these regulations lacks jurisdiction;

(b) a proposal for the appointment of a sole arbitrator;

(c) notification of the appointment of an arbitrator;

(d) a brief description of counterclaims or claims for the purpose of a set-off, if any, including, where relevant, an indication of the amounts involved, and the relief or remedy sought;

(e) a notice of arbitration in accordance with subsection (3), in case the respondent formulates a claim against a party to the arbitration agreement other than the claimant.

(3) The constitution of the Arbitration Tribunal shall not be hindered by any controversy with respect to the respondent's failure to communicate a response to the notice of arbitration, or an incomplete or late response to the notice of arbitration, which shall be finally resolved by the arbitral tribunal.

Receipt of written communications

11. Unless otherwise agreed by the parties—

(a) any written communication is deemed to have been received if it is delivered to the addressee personally or if it is delivered at his or her place of business, habitual residence or mailing address and if none of these can be found after making a reasonable inquiry, a written communication is deemed to have been received if it is sent to the addressee's last known place of business, habitual residence or mailing address by registered letter or any other means which provides a record of the attempt to deliver it;

(b) the communication is deemed to have been received on the day it is so delivered.

Waiver of right to object

12. A party who knows that any provision of these regulations from which the parties may derogate, or any requirement under the arbitration agreement has not been complied with and yet proceeds with the arbitration without stating his or her objection to such non-compliance without undue delay or, if a time limit is provided therefore, within such period of time, shall be deemed to have waived his or her right to object.

Extent of tribunal intervention

13. In matters governed by these regulations, no tribunal shall intervene except to the extent provided in these regulations.

PART IV

Arbitration Agreement

Form of arbitration agreement

14. (1) In this section—

"arbitration agreement" means an agreement between any person seeking to be approved as a participant in the international financial services centre with the Centre which has the effect of submitting to arbitration on all or certain disputes which arise between the person and a third party in respect of a defined legal relationship, whether contractual or not.

(2) Before an applicant is approved as a participant within the international financial services centre, they shall enter into an arbitration agreement with the Centre in the manner prescribed in the rules.

(3) The arbitration agreement shall be in writing.

(4) The reference in a contract to any document containing an arbitration clause constitutes an arbitration agreement in writing, provided that the reference is such as to make that clause part of the contract.

(5) Non-participants may elect or agree to have their disputes of a commercial or delictual nature resolved within the international financial services centre.

Arbitration agreement and substantive claim before Tribunal

15. Where a party submits an action before the Tribunal in a matter which is the subject of an arbitration agreement, the Tribunal may, if the other party submits his or her first statement—

(a) dismiss the action if it finds that the arbitration agreement is—

(i) null and void; or

(ii) inoperative; or

(iii) incapable of being performed; or

(b) proceed to hear the action where the agreement is seen to be valid.

Arbitration agreement and interim measures

16. A party may, before or during arbitral proceedings, request in writing from the Tribunal an interim measure, and the Tribunal may make a determination on such a request.

Confidentiality

17. All information relating to the arbitral proceedings shall be kept confidential during and after the arbitral proceedings, except where—

(a) parties agree to the disclosure; or

(b) disclosure is required by an order of the Appeals Tribunal.

PART V

Composition of Arbitral Tribunal

Number of arbitrators

18. (1) The parties are free to determine the number of arbitrators.

(2) Failing such determination, the number of arbitrators shall be three.

Appointment of arbitrators

19. (1) No person shall be precluded by reason of his or her nationality from appointment as an arbitrator, unless otherwise agreed by the parties.

(2) Each party shall nominate an arbitrator who shall be appointed as such by the Registrar, and the appointed arbitrators shall, within seven days, appoint one arbitrator who shall be the chairperson.

(3) If the parties fail to nominate arbitrators in terms of subsection (2), the Registrar shall appoint three arbitrators.

(4) Where the Registrar appoints arbitrators in terms of subsection (3), that decision shall not be subject to appeal.

Grounds for challenging appointment of arbitrator

20. (1) When a person is approached in connection with his or her possible appointment as an arbitrator, he or she shall disclose any circumstances likely to give rise to justifiable doubts as to his or her impartiality or independence. An arbitrator, from the time of his or her appointment and throughout the arbitral proceedings, shall, without delay, disclose any such circumstances to the parties and arbitral institution administering the arbitration unless they have already been informed of them by him or her.

(2) An arbitrator may be challenged only if circumstances exist that give rise to justifiable doubts as to his or her impartiality or independence, or if he or she does not possess qualifications agreed to by the parties. A party may challenge an arbitrator appointed by him, or her or in whose appointment he or she has participated, only for reasons of which he or she becomes aware after the appointment has been made.

Procedure for challenge of arbitrator

21. (1) The parties are free to agree on a procedure for challenging an arbitrator, subject to the provisions of subsection (3).

(2) Failing to reach an agreement pursuant to subsection (1)—

(a) a party who intends to challenge an arbitrator shall, within fifteen days after becoming aware of the constitution of the Arbitration Tribunal or after becoming aware of any circumstance referred to in section 20(2), send a written statement of the reasons for the challenge to the arbitral tribunal;

(b) unless the challenged arbitrator withdraws from his or her office or the other party agrees to the challenge, the Arbitration Tribunal shall decide on the challenge.

(3) Where a challenge under any procedure agreed by the parties or under the procedure of subsection (2) is not successful, the challenging party may request, within thirty days after having received notice of the decision rejecting the challenge, that the Appeals Tribunal decide on the challenge.

(4) While a request under subsection (3) is pending, the arbitral tribunal, including the challenged arbitrator, may continue the arbitral proceedings and make one or more awards.

Failure or impossibility to act

22. (1) If an arbitrator becomes, as a matter of fact or law, unable to perform his or her functions or, for other reasons, fails to act without undue delay, his or her mandate shall terminate if he or she withdraws from his or her office or if the parties agree on the termination. In the absence of such an agreement or if a controversy remains concerning any of these grounds, any party may request the Appeals Tribunal to decide on the termination of the mandate, which decision shall not be subject to appeal.

(2) If, under this section or section 21(2), an arbitrator withdraws from his or her office or a party agrees to the termination of the mandate of the arbitrator, this does not imply acceptance of the validity of any ground referred to in this section or section 20(2).

Appointment of substitute arbitrator

23. (1) Where the mandate of an arbitrator terminates under sections 18 or 19 or because of his or her withdrawal from office for any other reason or because of the revocation of his or her mandate by agreement of the parties or in any other case of termination of his or her mandate—

(a) subject to any process agreed between the parties in the arbitration agreement, or thereafter, the parties may agree with the arbitrator as to his or her liabilities and entitlement (if any) to fees and expenses; and

(b) a substitute arbitrator shall be appointed according to the rules that were applicable to the appointment of the arbitrator being replaced, unless otherwise agreed by the parties.

(2) If there is no agreement in terms of subsection (1)(a) as to the consequences of resignation, an arbitrator who resigns in the circumstances set out in subsection (1) may, upon written notice to the parties, request the Appeals Tribunal to make an order relieving him or her of any liability incurred by reason of his or her resignation together with such order as the Appeals Tribunal deems appropriate with respect to his or her entitlement (if any) to fees and expenses, which orders shall not be subject to appeal.

Liability of Arbitration Tribunal

24. (1) No arbitrator, employee or agent of an arbitrator, arbitral institution, officer or employee of an arbitral institution, or appointing authority shall be liable to any person for any act or omission in connection with an arbitration unless they are shown to have caused damage by conscious and deliberate wrongdoing.

(2) This section does not affect any liability incurred by an arbitrator by reason of his or her resigning.

PART VI

Jurisdiction of Arbitration Tribunal

Competence of Arbitration Tribunal to rule on its jurisdiction

25. (1) The Arbitration Tribunal may rule on its own jurisdiction, including any objections with respect to the existence or validity of the arbitration agreement. For that purpose, an arbitration clause which forms part of a contract shall be treated as an agreement independent of the other terms of the contract. A decision by the Arbitration Tribunal that the contract is null and void shall not by itself determine the invalidity of the arbitration clause.

(2) A plea by a respondent or other party that the Arbitration Tribunal does not have jurisdiction shall be raised not later than the submission of his or her defence or, for another party, his or her first written statement on the substance of the dispute in the arbitration. A party is not precluded from raising such a plea by the fact that it has appointed, or participated in the appointment of, an arbitrator. A plea that the Arbitration Tribunal is exceeding the scope of its authority shall be raised as soon as the matter alleged to be beyond the scope of its authority is raised during the arbitral proceedings. The Arbitration Tribunal may, in either case, admit a later plea if it considers the delay justified.

(3) The Arbitration Tribunal may rule on a plea referred to in subsection (2), either as a preliminary question or in an award on the merits. If the Arbitration Tribunal rules as a preliminary question that it has jurisdiction, any party may request, subject to any process agreed between the parties, within thirty days after having received notice of that ruling, the Arbitration Tribunal to decide the matter, which decision shall not be subject to appeal, while such a request is pending, the Arbitration Tribunal may continue the arbitral proceedings and make an award.

Power of Arbitration Tribunal to order interim measures

26. The following provisions apply unless the parties have expressly agreed in writing that the Arbitration Tribunal shall not have power to order interim measures—

(a) the Arbitration Tribunal may, at the request of a party, order any party to take such interim measures as the Arbitration Tribunal may consider necessary in relation to an arbitration. The arbitral tribunal may order any claiming or counterclaiming party to provide appropriate security in connection with such measure, including security for the legal or other costs of any party by way of deposit, bank guarantee or in any other manner and upon such terms as the Arbitration Tribunal considers appropriate. Any request made to the Arbitration Tribunal shall be simultaneously copied to all other parties to the arbitration;

(b) an interim measure is any temporary measure, whether in the form of an award or in another form, by which, at any time before the issuance of the award by which the dispute is to be finally decided, the Arbitration Tribunal orders a party to—

(i) maintain or restore the status quo pending determination of the dispute;

(ii) provide a means of preserving assets out of which a subsequent award may be satisfied or other means for securing or facilitating the enforcement of such an award;

(iii) take action that would prevent, or refrain from taking action that is likely to cause, current or imminent harm or prejudice to any party or to the arbitral process itself; or

(iv) preserve evidence that may be relevant and material to the resolution of the dispute;

(c) the party requesting an interim measure under any of paragraphs (b)(i), (ii), and (iii) shall satisfy the Arbitration Tribunal that—

(i) harm which will not be adequately reparable by an award of damages is likely to result if the interim measure is not ordered, and that harm will substantially outweigh the harm, if any, that is likely to result to the party opposing the interim measure if the measure is ordered;

(ii) there is a reasonable possibility that the requesting party will succeed on the merits of the claim. The determination on this possibility shall not affect the discretion of the Arbitration Tribunal in making any subsequent determination;

(iii) with regard to a request for an interim measure under paragraph (b)(iv), the requirements in paragraph (c) shall apply only to the extent the Arbitration Tribunal considers appropriate;

(iv) the Arbitration Tribunal may require any party to promptly disclose any material change in the circumstances on the basis of which the interim measure was requested or granted;

(v) the party requesting an interim measure may be liable for any costs and damages caused by the measure to any other party if the Arbitration Tribunal later determines that, in the circumstances, the measure should not have been granted. The Arbitration Tribunal may award such costs and damages at any point during the proceedings;

(vi) the tribunal may modify, suspend or terminate an interim measure it has granted, upon application of any party or, in exceptional circumstances and upon prior notice to the parties, on the arbitral tribunal's own initiative;

(d) with the written permission of the Arbitration Tribunal, a party in whose favour an interim measure has been granted may request from the Arbitration Tribunal an order enforcing the arbitral tribunal's order or any part of it. Any request for permission or enforcement made under this section shall be simultaneously copied to all other parties. Unless the Arbitration Tribunal at any time

directs otherwise, the party requesting the Arbitration Tribunal under this section shall be entitled to recover in the arbitration any legal costs and Arbitration Tribunal fees reasonably incurred;

(e) recognition or enforcement of an interim measure may be refused only—

(i) at the request of the party against whom it is invoked, if the Arbitration Tribunal is satisfied that—

A. such refusal is warranted;

B. the arbitral tribunal's decision with respect to the provision of security in connection with the interim measure issued by the Arbitration Tribunal has not been complied with;

C. the interim measure has been terminated or suspended under the law under which that interim measure was granted; or

(ii) if the Arbitration Tribunal finds that the interim measure is incompatible with the powers conferred upon the court, unless the court decides to reformulate the interim measure to the extent necessary to adapt it to its own powers and procedures for the purposes of enforcing that interim measure and without modifying its substance;

(f) any determination made by the court shall be effective only for the purposes of the application to recognise and enforce the interim measure. The court where recognition or enforcement is sought shall not, in making that determination, undertake a review of the substance of the interim measure;

(g) the Centre court shall have the same power of issuing an interim measure in relation to arbitration proceedings, where its seat is in the Centre, as it has in relation to proceedings in the Arbitration Tribunal. The Arbitration Tribunal shall exercise such power in accordance with its own procedures.

PART VII

Conduct of Arbitral Proceedings

Equal treatment of parties

27. The parties shall be treated with equality, and each party shall be given a full opportunity of presenting his or her case.

Determination of rules of procedure

28. (1) Subject to the provisions of these regulations, the parties are free to agree on the procedure to be followed by the Arbitration Tribunal in conducting the proceedings.

(2) In the absence of such an agreement, the Arbitration Tribunal may, subject to the provisions of these regulations, conduct the arbitration in such manner as it considers appropriate.

(3) The power conferred upon the Arbitration Tribunal includes the power to determine the admissibility, relevance, materiality and weight of any evidence.

Seat of arbitration

29. (1) The international financial services centre shall be the seat of arbitration for all arbitral proceedings.

(2) Notwithstanding the provisions of subsection (1), the seat of arbitration where a matter is on appeal shall be either of the list of international financial centres specified by the Authority.

Commencement of arbitral proceedings

30. Unless otherwise agreed by the parties, the arbitral proceedings in respect of a particular dispute commence on the date on which a request by one party for that dispute to be referred to arbitration is served on the respondent.

Language

31. The language to be used in the arbitral proceedings shall be English language.

Statements of claim and defence

32. (1) Within the period of time agreed by the parties or determined by the arbitral tribunal, the claimant shall state the facts supporting his or her claim, the points at issue and the relief or remedy

sought, and the respondent shall state his or her defence in respect of these particulars, unless the parties have otherwise agreed as to the required elements of such statements.

(2) The parties may submit with their statements all documents they consider to be relevant or may add a reference to the documents or other evidence they will submit.

(3) Unless otherwise agreed by the parties, either party may amend or supplement his or her claim or defence during the course of the arbitral proceedings, unless the Arbitration Tribunal considers it inappropriate to allow such amendment having regard to the delay in making it.

Hearings and written proceedings

33. (1) Subject to any contrary agreement by the parties, the Arbitration Tribunal shall decide whether to hold oral hearings for the presentation of evidence or for oral argument, or whether the proceedings shall be conducted based on documents and other materials. However, unless the parties have agreed that no hearing shall be held, the Arbitration Tribunal shall hold such hearings at an appropriate stage of the proceedings, if so requested by a party.

(2) The parties shall be given sufficient advance notice as the Arbitration Tribunal shall decide of any hearing and of any meeting of the Arbitration Tribunal for inspection of goods, other property or documents.

(3) All statements, documents, or other information supplied to the Arbitration Tribunal by one party shall be communicated to the other party.

(4) Any expert report or evidentiary document on which the Arbitration Tribunal may rely in making its decisions shall be communicated to the parties.

Default of party

34. Unless otherwise agreed by the parties, if, without showing sufficient cause—

(a) the claimant does not communicate his or her statement of claim, the Arbitration Tribunal shall terminate the proceedings;

(b) the respondent does not communicate his or her statement of defence, the Arbitration Tribunal shall continue the proceedings without treating such lack of communication in itself as an admission of the claimant's allegations; or

(c) any party does not appear at a hearing or does not produce documentary evidence, the arbitral tribunal may continue the proceedings and make the award on the evidence before it.

Expert appointed by arbitral tribunal

35. (1) Unless otherwise agreed by the parties, the arbitral tribunal may—

(a) appoint one or more experts to report to it on specific issues to be determined by the arbitral tribunal; and

(b) require a party to give the expert any relevant information or to produce, or to provide access to, any relevant documents, goods or other property for his or her inspection.

(2) Unless otherwise agreed by the parties, if a party so requests or if the Arbitration Tribunal considers it necessary, the expert shall, after delivery of his or her written or oral report, participate in a hearing where the parties have the opportunity to put questions to him or her and to present expert witnesses in order to testify on the points at issue.

(3) The expenses and costs of the expert appointed by the Arbitration Tribunal pursuant to this section shall be borne by the parties in accordance with any determination made by the Arbitration Tribunal in that respect, which determination shall be binding and final.

Court assistance in taking evidence

36. The Arbitration Tribunal or a party, with the approval of the Arbitration Tribunal, may request from the Arbitration Tribunal assistance in taking evidence. The Arbitration Tribunal may execute the request within its competence and according to its rules on taking evidence.

PART VIII

Making of Award and Termination of Proceedings

Rules applicable to substance of dispute

37. (1) The Arbitration Tribunal shall decide disputes in accordance with English law.

(2) In all cases, the Arbitration Tribunal shall make determinations in accordance with the terms of the contract and applicable law and shall consider the usages of the trade applicable to the transaction.

Decision making by arbitral tribunal

38. In arbitral proceedings, any decision of the Arbitration Tribunal shall be made, unless otherwise agreed by the parties, by a majority of all its members. However, questions of procedure may be decided by a presiding arbitrator, if so, authorised by the parties or all members of the arbitral tribunal.

Settlement

39. (1) If during arbitral proceedings the parties settle the dispute, the Arbitration Tribunal shall terminate the proceedings and, if requested by the parties and not objected to by the arbitral tribunal, record the settlement in the form of an arbitral award on agreed terms.

(2) An award on agreed terms shall be made in accordance with the provisions of section 40 and shall state that it is an agreed award, and such an award has the same status and effect as any award made on the merits of the case.

Form and contents of award

40. (1) The award shall be made in writing and shall be signed by the arbitrators. The signatures of the majority of all members of the Arbitration Tribunal shall suffice, provided that the reason for any omitted signature is stated.

(2) The award shall state the reasons upon which it is based, unless the parties have agreed that no reasons are to be given or the award is an award on agreed terms in terms of section 39.

(3) The award shall state its date and the seat of the arbitration as determined in accordance with section 29.

(4) The award shall be deemed to have been made at the seat of the arbitration.

(5) After the award is made, a copy signed by the arbitrators in accordance with subsection (1) shall be delivered to each party.

(6) The Arbitration Tribunal shall fix the costs of the arbitration in its award. The term "costs" includes only—

(a) the fees of the Arbitration Tribunal are to be stated separately for each arbitrator;

(b) the properly incurred travel and other expenses incurred by the arbitrators;

(c) the costs of expert advice and of other assistance required by the arbitral tribunal;

(d) the travel and other expenses of witnesses to the extent such expenses are approved by the arbitral tribunal;

(e) such other costs as are necessary for the conduct of the arbitration, including those for meeting rooms, interpreters and transcription services;

(f) the costs for legal representation and assistance of the successful party if such costs were claimed during the arbitration, and only to the extent that the Arbitration Tribunal determines that the amount of such costs is reasonable; and

(g) any fees and expenses of any arbitral institution or appointing authority.

Termination of proceedings

41. (1) The arbitral proceedings are terminated by the final award or by an order of the Arbitration Tribunal in accordance with subsection (2).

(2) The Arbitration Tribunal shall issue an order for the termination of the arbitral proceedings when—

(a) the claimant withdraws his or her claim, unless the respondent objects and the Arbitration Tribunal

recognises a legitimate interest on his or her part in obtaining a final settlement of the dispute;

(b) the parties agree on the termination of the proceedings; or

(c) the Arbitration Tribunal finds that the continuation of the proceedings has, for any other reason, become unnecessary or impossible.

(3) The mandate of the Arbitration Tribunal terminates with the termination of the arbitral proceedings, subject to the provisions of subsection (5) and of sections 39 and 42.

(4) The Arbitration Tribunal may refuse to deliver a final award or an order for termination of the arbitral proceedings to the parties in accordance with section 40(5) until its fees and expenses are paid in full.

(5) Subject to any process agreed between the parties in the arbitration agreement, if the Arbitration Tribunal refuses to deliver an award or order to the parties until its fees and expenses are paid, a party to the arbitral proceedings may apply to the Appeals Tribunal, which may—

(a) order the Arbitration Tribunal to deliver the award, or order on the payment into the Appeals Tribunal by the applicant of the fees and expenses demanded, or such lesser sum as the Arbitration Tribunal of first Instance may specify;

(b) determine, by such means as the Appeals Tribunal considers appropriate, the amount of fees and expenses properly payable; and

(c) out of the money paid into the Appeals Tribunal, there shall be paid out such fees and expenses as may be found to be properly payable, and the balance of the money (if any) shall be paid out to the applicant.

Correction and interpretation of award: additional award

42. (1) Within thirty days of receipt of the award, unless another period of time has been agreed upon by the parties—

(a) a party, with notice to the other party, may request the Arbitration Tribunal to correct in the award any errors in computation, any clerical or typographical errors or any errors of a similar nature;

(b) if agreed by the parties, a party, with notice to the other party, may request the Arbitration Tribunal to give an interpretation of a specific point or part of the award.

(2) If the Arbitration Tribunal considers the request to be justified, it shall make the correction or give the interpretation within thirty days of receipt of the request. The interpretation shall form part of the award.

(3) The Arbitration Tribunal may correct any error of the type referred to in subsection (1)(a) on its own initiative within thirty days of the date of the award.

(4) Unless otherwise agreed by the parties or in respect of an agreed award made under section 39, a party, with notice to the other party, may request, within thirty days of receipt of the award, the Arbitration Tribunal to make an additional award as to claims presented in the arbitral proceedings but omitted from the award. If the Arbitration Tribunal considers the request to be justified, it shall make the additional award within sixty days.

(5) The Arbitration Tribunal may extend, if necessary, the period of time within which it shall make a correction, interpretation or an additional award under subsections (1) or (3) of this section.

(6) The provisions of section 40 shall apply to a correction or interpretation of the award or to an additional award.

PART IX

Recourse Against Award

Application for setting aside exclusive recourse against arbitral award—Appeals Arbitration

43. (1) Recourse to a Court against an arbitral award made in the seat of the international financial services centre may be made only by an application for setting aside in accordance with subsections (2) and (3).

(2) Such an application may only be made to the Appeals Tribunal. An arbitral award may be set aside by the Appeals Tribunal only if—

(a) the party making the application furnishes proof that—

(i) a party to the arbitration agreement was under some incapacity; or

(ii) the said agreement is not valid under the law to which the parties have subjected it or, in the absence of any indication thereon, under the law of the international financial services centre; or

(ii) the party making the application was not given proper notice of the appointment of an arbitrator or of the arbitral proceedings or was otherwise unable to present his or her case; or

(iii) the award deals with a dispute not contemplated by or not falling within the terms of the submission to arbitration, or contains decisions on matters beyond the scope of the submission to arbitration, provided that, if the decisions on matters submitted to arbitration can be separated from those not so submitted, only that part of the award which contains decisions on matters not submitted to arbitration may be set aside; or

(iv) the composition of the Arbitration Tribunal or the arbitral procedure was not in accordance with the agreement of the parties, unless such agreement was in conflict with a provision of this law from which the parties cannot derogate, or, in the absence of such agreement, was not in accordance with this law; or

(b) the Appeals Tribunal finds that—

(i) the subject-matter of the dispute is not capable of settlement by arbitration under international financial services centre law;

(ii) the dispute is expressly referred to a different body or tribunal for resolution under these regulations

or any mandatory provision of the international financial services centre law; or

(iii) the award is in conflict with the public policy of Zimbabwe.

(3) An application for setting aside may not be made after three months have elapsed from the date on which the party making that application had received the award, or such longer period as the parties to the arbitration have agreed in writing, or, if a request had been made under section 42, from the date on which that request had been disposed of by the Arbitral Tribunal.

(4) The Appeals Tribunal, when asked to set aside an award, may, where appropriate and so requested by a party, suspend the setting aside proceedings for a period of time determined by it in order to give the Arbitration Tribunal an opportunity to resume the arbitral proceedings or to take such other action as in the Arbitral Tribunal's opinion will eliminate the grounds for setting aside.

PART X

Recognition and Enforcement of Awards

Recognition and enforcement of awards

44. (1) An award issued in terms of these regulations shall be recognised within Zimbabwe, notwithstanding that the seat of the arbitral proceedings or the appeal was done in the international financial services centre or some other jurisdiction.

(2) A Party with an arbitration award may enforce it locally, regionally and internationally in terms of—

(a) Treaties and conventions to which Zimbabwe is a Party;

(b) the law of the respective jurisdiction to which the Party seeks to enforce; or

(c) reciprocal arrangements entered into—

(i) in the event that the enforcing Party is a citizen of Zimbabwe, by Zimbabwe and another country; or

(ii) in the event that the enforcing Party is a citizen of another country, by that other country and a third country.

Grounds for refusing recognition or enforcement

45. (1) Recognition or enforcement of an arbitral award, irrespective of the State or jurisdiction in which it was made, may be refused by the Arbitration Tribunal only—

(a) at the request of the party against whom it is invoked, if that party furnishes to the Arbitration Tribunal evidence that—

(i) a party to the arbitration agreement as defined in section 14 of these Regulations was under some incapacity; or

(ii) the arbitration agreement is not valid under the law to which the parties have subjected it or, in the absence of any indication, under the law of the State or jurisdiction where the award was made; or

(iii) the party against whom the award is invoked was not given proper notice of the appointment of an arbitrator or of the arbitral proceedings or was otherwise unable to present his case; or

(iv) the award deals with a dispute not contemplated by or not falling within the terms of the submission to arbitration, or it contains decisions on matters beyond the scope of the submission to arbitration, provided that, if the decisions on matters submitted to arbitration can be separated from those not submitted, that part of the award which contains decisions on matters submitted to arbitration may be recognised and enforced; or

(v) the composition of the Arbitration Tribunal or the arbitral procedure was not in accordance with the agreement of the parties or, in the absence of such agreement, was not in accordance with the law of the State or jurisdiction where the arbitration took place; or

(vi) the award has not yet become binding on the parties or has been set aside or suspended by a court of the

State or jurisdiction in which, or under the law of which, that award was made; or

(vii) submitted to arbitration can be separated from those not submitted, that part of the award which contains decisions on matters submitted to arbitration may be recognised and enforced;

(viii) the composition of the Arbitration Tribunal or the arbitral procedure was not in accordance with the agreement of the parties or, in the absence of such agreement, was not in accordance with the law of the State or jurisdiction where the arbitration took place; or

(ix) the award has not yet become binding on the parties or has been set aside or suspended by a court of the State or jurisdiction in which, or under the law of which, that award was made; or

(b) if the Arbitration Tribunal finds that—

(i) the subject matter of the dispute would not have been capable of settlement by arbitration under the laws of the VFIFSC; or

(ii) the enforcement of the award would be contrary to the public policy of the Republic of Zimbabwe.

(2) If an application for the setting aside or suspension of an award has been made to a court referred to in subsection (1)(a)(vi), the Arbitration Tribunal may, if it considers it proper, adjourn its decision and may also, on the application of the party seeking recognition or enforcement of the award, order the other party to provide appropriate security.

(3) Any party seeking recourse against an arbitral award made in the seat of the international financial services centre shall not be permitted to make an application under subsection (1)(a) if it has made or could have made an application in terms of section 43.